

25PR00561 Estate of Arthur Andrew Armbruster Tilton

County: santa-barbara

Division: Decedent's Estate

Department: 2 SM-Cook

Hearing date: 2026-08-25

Motion: Petition for Final Distribution

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Tentative Ruling: Estate of Arthur Andrew Armbruster Tilton

Case Number

25PR00561

Case Type

Decedent's Estate

Hearing Date / Time

Tue, 08/25/2026 - 09:00

Nature of Proceedings

Petition for Final Distribution

Tentative Ruling

Probate Notes:

The following must be submitted:

Proof of Service of Notice of Hearing (Form DE-120). Notice must be given 15 days prior to hearing, served on all known heirs and devisees, as well as on the Personal Representative (if not the petitioner) and special notice requestors. (Prob. Code, §§ 11601 & 1220.) Notice must be sent to the person, not the person's representative. (§1220.) No such document was filed showing notice to Beverly Alexander.

The Court has authority to order notice to Beverly Alexander under the circumstances. (Prob. Code, §1202.)

Disclaimer of Beverly Alexander. The proposed distribution differs from the distribution ordered by Decedent's Last Will and Testament. A document was filed on April 22, 2026, purporting to be a Disclaimer by Beverly Alexander, but that Disclaimer is woefully inadequate to disclaim interest in an estate, because it does not meet the requirements of Probate Code section 275, et. seq. Please resubmit a new Disclaimer by Beverly Alexander, or amend the Petition to reflect distribution of 50% of the estate to Beverly Alexander.

Accounting or Waivers. If Beverly Alexander does not submit a code-compliant Disclaimer, an accounting or waiver of accounting must be filed. Each person entitled to distribution from the estate may waive a final account by 1) filing a written waiver of account (Prob. Code, § 10954, subd. (a)(1)); OR by filing 2) proof of adequate provision for satisfaction in full of the person's interest (Id., subd. (a)(2)). No such document was filed.

The final account must be submitted, if not waived. (Prob. Code, § 10951.) The final account must contain all items listed in Probate Code section 1061:

(1) The property on hand at the beginning of the period covered by the account, which shall be the value of the property initially received by the fiduciary if this is the first account, and shall be the property on hand at the end of the prior account if this is a subsequent account.

(2) The value of any assets received during the period of the accounting which are not assets on hand as of the commencement of the administration of an estate.

The amount of any receipts of income or principal, excluding items listed under paragraphs (1) and (2) or receipts from a trade or business.

Net income from a trade or business.

Gains on sales.

The amount of disbursements, excluding disbursements for a trade or business or distributions.

Loss on sales.

Net loss from trade or business.

Distributions to beneficiaries, the ward or conservatee.

Property on hand at the end of the accounting period, stated at its carry value.

If the documents curing these deficiencies are not processed by 8:00 a.m. on August 24, 2026, it is recommended that the matter be continued to a date to be set by the Court at the hearing, unless the party appears and requests a different date, or submits a request for a different continuance date prior to the hearing. (Local Rule 1721(c)(2)(A-B).) If the matter is continued, documents must be submitted at least 10 days prior to the new hearing date to be considered.

Due to staffing limitations, processing times may be delayed. To assist in processing, attorneys and parties should include the next court date in the "Filing Description" field provided by the electronic service provider. That field is also used for further descriptions of the document being e-filed, so be sure to put the calendar date FIRST in the field – BEFORE any

further description of the document being e-filed (e.g.: 06/28/16 For XYZ).

Judges

Judge James F. Rigali

Dept. 2 SM-Cook

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